

inadvertence, surprise, or neglect, if a timely application for relief is accompanied by the attorney's sworn affidavit.

An application for mandatory relief based on an attorney affidavit of fault must be made "no more than six months after entry of judgment." (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.) The six-month period starts with entry of the default judgment, not the default. (*Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 297.) The term "excusable neglect" is interpreted liberally. (*Jott v. Franklin* (1988) 206 Cal.App.3d 521.) "Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (*Elston v. City of Turlock* (1985) 38 Cal.3d 227.)

Here, Plaintiff's counsel asserts that when the matter was set for trial and trial readiness conference, the dates were not on his calendar, as a result he was not aware of the trial date, resulting to his nonappearance. (Hanson Decl. ¶¶ 4-5) Counsel makes reference to its firm's calendar clerk, yet makes no mention as to whose responsibility it was to calendar the trial dates. Nonetheless, because the law strongly favors disposition on the merits, and the prejudice on the Plaintiff, the motion is granted.

3.

| CASE #      | CASE NAME                  | HEARING NAME               |
|-------------|----------------------------|----------------------------|
| CVRI2505180 | CITY OF RIVERSIDE vs LOPEZ | MOTION TO APPOINT RECEIVER |

**Tentative Ruling:**

Appearances required.